

First reading: 10/12/20
Second reading: 10/26/20

Introduced by the Board as a Whole

SUBSTITUTE BILL NO. 20-50

ORDINANCE NO. 4390

**AN ORDINANCE AMENDING TITLE IV, CHAPTER 405, THE ZONING REGULATIONS,
OF THE TOWN AND COUNTRY MUNICIPAL CODE, SPECIFICALLY SECTION 405.150
REGARDING FENCE REGULATIONS**

WHEREAS, the current adopted fence code was established by Ordinance No. 1076 approved on January 27, 1987; and

WHEREAS, the City is often addressed with inquires regarding fence maintenance and materials; and

WHEREAS, the purpose of these amendments are to update and better align the City's fence regulation with current best practices; and

WHEREAS, the Planning and Zoning Commission, after review on September 16, 2020, recommended approval of the amended section regarding fence regulations; and

WHEREAS, the Board of Aldermen has considered the recommendation of the Planning and Zoning Commission and held a public hearing on October 12, 2020 after giving due and proper notice of said hearing in the St. Louis Countian, a newspaper of general circulation in the City of Town and Country.

NOW, THEREFORE, BE IT ORDAINED BY THE BOARD OF ALDERMEN OF THE CITY OF TOWN AND COUNTRY, ST. LOUIS COUNTY, MISSOURI, AS FOLLOWS:

Section 1. Title IV. Land Use, Chapter 405, the Zoning Regulations, of the City of Town and Country Municipal Code, specifically Section 405.150 is hereby amended to read as follows: (additions shown as underline; deletions shown as ~~strikethrough~~)

Section 405.150 Fence Regulations.

A. Purpose. The fence regulations set forth supplement the district regulations for each district in this Chapter.

B. Definitions. For the purposes of this Article the following terms shall be deemed to have the meaning indicated below:

COURTYARD WALL

Enclosure wall which is architecturally integrated into, connected at both ends to an existing structural wall of, and located within the general exterior circumference of, the main building on a lot.

FENCE

A structure, partition or wall erected for the purpose of enclosing or separating land or for the purpose of providing shade or privacy screening. Shrubs, hedges, trees and other plant material shall not be considered a fence.

FENCE OPEN AREA

Shall be determined by viewing the fence at a 90 degree angle with the percentage of the open area consistently appearing throughout the entire length of the fence.

INSUBSTANTIAL FENCES

Fences made with materials that are flimsy, unstable, fragile, weak, or that are readily susceptible to deterioration, including but not limited to chicken wire, untreated and non-exterior wood products, unstable plastics, and similar materials.

WILDLIFE PROTECTION FENCES

Fences constructed of stable metal wire or plastic installed for the purpose of protecting gardens and landscaping from animals such rabbits and deer.

GATE

~~A moveable barrier attached to a permanent support structure.~~

STOCKADE FENCE

~~A fence comprised of a line of stout posts or stakes set side by side and held firmly together.~~

C. Permit Required. No person shall erect or maintain within the City any fence without first having obtained a permit from the City.

D. Prohibited Fences. The following fences are prohibited:

~~1. Stockade fences.~~

~~1. Insubstantial Fences Fences made of chicken wire or similarly unstable materials.~~

~~2. Barbed wire fences and/or fences having sharp and unsafe features.~~

~~3. Fences constructed with metal panels.~~

~~4. Chain link fences (Residential Districts)~~

~~a. Exception: chain link fence is permissible for enclosing of the following permitted non-residential uses: outdoor storage, utilities, mechanical equipment and public safety areas if the location is not visible from public-right-of-way or adjacent residentially-zoned property.~~

~~5. Fences exceeding a height of six (6) feet except as otherwise provided in this Chapter.~~

~~6. Fences erected in a required front yard except as otherwise provided in this Chapter.~~

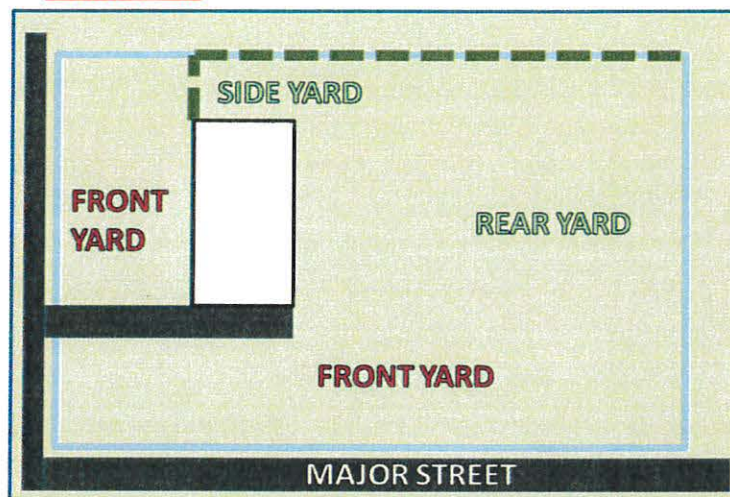
7. Temporary fences are prohibited except where required by code for construction, excavation or life safety issues or otherwise provided in this Chapter.

8. Solid fences constructed with simulated wood, including vinyl, vinyl covered, and synthetic wood composite or equivalent or vinyl fences in the color white or other light-toned color.

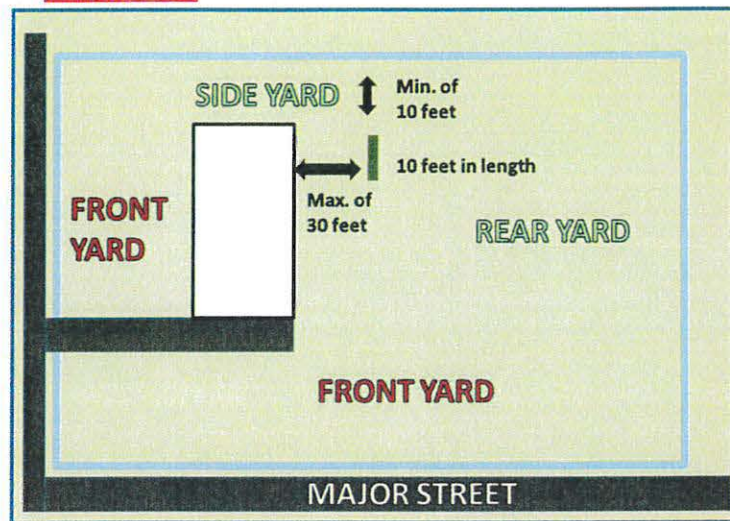
E. Permitted Fences In All Residential And Major Educational Districts. The following fences are permitted in all residential and major educational districts:

1. Fences with at least thirty percent (30%) open area consistently appearing throughout the entire area of the fence. No such fence shall be permitted in a required front yard.

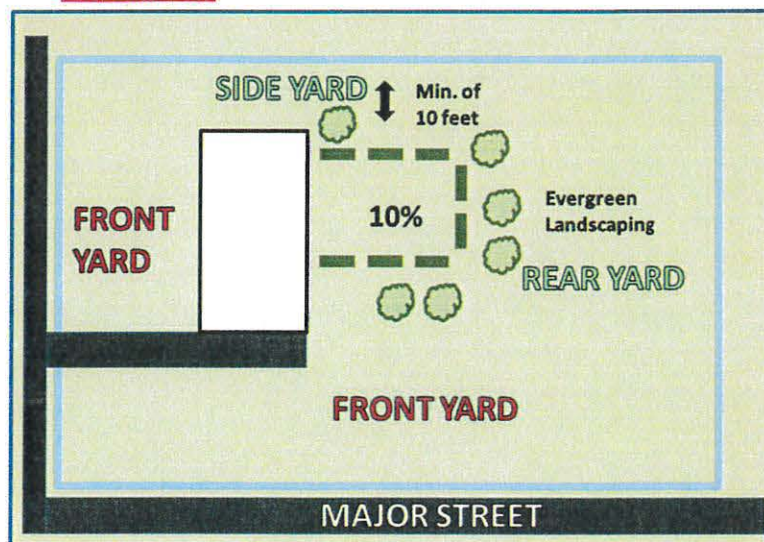
EXAMPLE



2. Solid fences, and all fences with less than thirty percent (30%) open area, ~~consisting of wood or masonry~~ provided they are no longer than ten (10) feet in length, linear with no perpendicular segments, ~~open on each end and within thirty~~ (30) feet of the main structure. Such fences may be erected in required rear or side yards provided they are at least ten (10) feet from any lot line. No such fence shall be permitted in a required front yard.

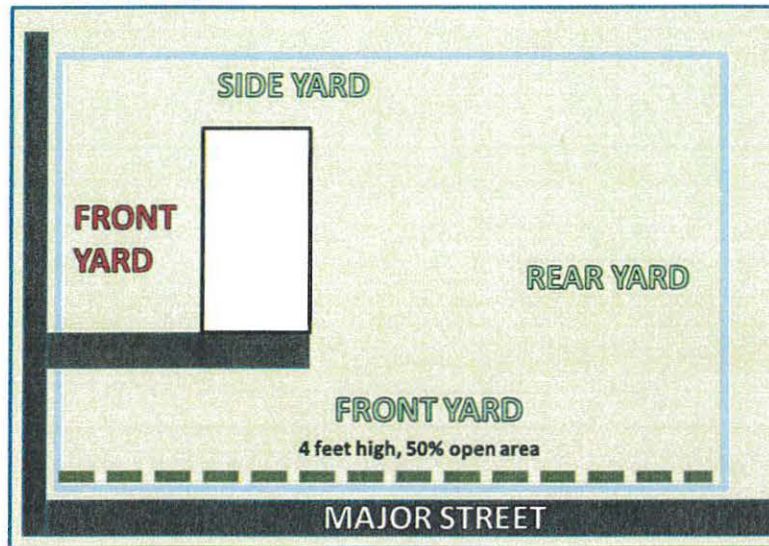
EXAMPLE

3. Ten percent (10%) of a lot may be enclosed with a solid ~~wood or masonry~~ fence, or a fence with less than thirty percent (30%) open area, in a required rear or side yard provided the fence is at least ten (10) feet from any lot line and is landscaped with evergreen material approved by the ~~Director~~ City Administrator or their designee as sufficient to screen the fence from adjoining residential uses. No such fence shall be permitted in a required front yard.

EXAMPLE

4. Fences ~~of wood, masonry or wrought iron design~~ which contain fifty percent (50%) or more open area and do not exceed four (4) feet in height shall be permitted (a) within the front yard of a lot along major streets as listed in Appendix 1 of this Chapter or (b) within the front yard of a lot which is located in the Estate zoning district, but which is not located in a subdivision, provided if there exists at least one hundred (100) feet between the principal structure located on the lot and the building line.

EXAMPLE



5. Courtyards walls shall not be deemed fences for the purposes of these regulations.

6. A private outdoor swimming pool shall be provided with a fence surrounding the pool area that is constructed and maintained in compliance with the current, adopted Town and Country Building Code.

7. Wildlife protection fences

- a. A maximum height of six (6) feet in rear yard and three (3) feet in front yard. A maximum of six (6) feet high fencing shall only be permitted in front yard if directly surrounding the trunk of a tree and less than three (3) feet from this same tree.
- b. Shall be installed a minimum of ten (10) feet from any lot line.

F. Permitted Fences In ~~The Hospital, Campus Office, Office, Planned Office Park And Commercial~~ Non-Residential/Planned Development Zoning Districts. The following fences are permitted in the hospital, campus office, office, planned office park and commercial zoning districts:

1. Fences with at least thirty percent (30%) open area consistently appearing throughout the entire area of the fences.

2. Solid fences ~~of wood or masonry~~ to screen and/or enclose trash disposal areas, loading docks, mechanical equipment, and similar uses and structures. Solid fences are permitted on property lines that are adjacent to residential zoning districts.

3. In major shopping centers, security fences no taller than eight (8) feet, which otherwise meet the requirements of this Section.

G. Non-Conforming Fences. Any fence that exists at the time of the adoption of this section or amendments thereto and is not in compliance with one (1) or more of the applicable requirements shall be considered non-conforming. Non-conforming fences shall not be changed, altered, expanded, or extended. The maintenance of a non-conforming fence as stated in Section 405.105.I is permitted.

H. Materials. The design, color and material of the fence shall be complementary or shall match the principal structure on the property. The following materials are permitted:

1. Treated wood.
2. Simulated wood, including vinyl covered and synthetic wood composite or equivalent.
3. Masonry, excluding unfinished concrete masonry units.
4. Metal, including steel, aluminum, wrought iron, or metal composite.

I. Maintenance Required. A fence or fences shall be maintained by the property owner in compliance with the following maintenance standards:

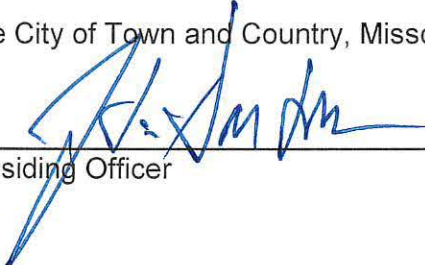
1. A fence shall not lean more than 15 degrees out of vertical alignment.
2. Any broken, damaged, removed or missing parts of a fence shall be replaced with the same material, or material with comparable composition, color, size, shape and quality of the original fence to which the repair is being made. No permit is required for repairs as defined in this chapter.
3. A fence shall be maintained in sound structural condition as a whole or be completely removed, including post(s).
4. Fences shall be maintained, including those existing prior to the adoption of this article, at all times in a state of good repair, safe and secure condition, with all braces, bolts, nails, supporting frame, fastenings and other components free from deterioration, termite infestation, rot, rust damage or loosening, and able to withstand at all times the wind pressure for which they were designed.
5. Fences that are painted or stained shall be regularly painted or stained to prevent rusting, peeling or blistering surfaces. The painted or stained fence shall be of comparable color in its entirety.

6. If it is determined by the City Administrator or their designee that the extent of repair on any existing non-compliant fence (with materials or location in noncompliance) is in excess of fifty percent (50%) of the total fence, then the entire fence must be replaced with a compliant fence materials approved by this chapter and/or installed in a legal location. A rolling six-month time period shall be used to determine if over fifty percent (50%) of a fence has been repaired.

Section 2. The Chapter, Article, Division and/or Section assignments designated in this Ordinance may be revised and altered by the codification company servicing the Municipal Code of the City of Town and Country upon supplementation of such code if, in the discretion of the editor, an alternative designation would be more reasonable. In adjusting such designations the editor may also change other designations and numerical assignment of code sections to accommodate such changes.

Section 3. This Ordinance shall be in full force and effect from and after its passage and approval as provided by law.

Passed by the Board of Aldermen for the City of Town and Country, Missouri, this 26th day of October, 2020.



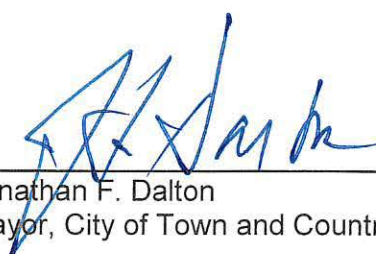
Presiding Officer

Attest:



Ashley McNamara, City Clerk

Signed this 26th day of October, 2020.



Jonathan F. Dalton
Mayor, City of Town and Country

Attest:



Ashley McNamara, City Clerk